



CHAPTER ccii.

An Act to authorise the Surrey Commercial Dock Com- A.D. 1904.
pany to raise further capital and for other purposes.
[15th August 1904.]

WHEREAS by the Surrey Commercial Dock Act 1894 the Surrey Commercial Dock Company (hereinafter called "the Company") were authorised to alter and extend their docks works and undertaking and for those purposes to raise capital and borrow money:

And whereas it is expedient that for such purposes the Company be authorised to raise further capital and borrow further money:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Surrey Commercial Dock Act 1904. Short title.

2. The following enactments (as far as they are applicable for the purposes of and are not inconsistent with or expressly varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say):— Incorporation of general enactments.

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the several matters following (namely):—

The distribution of the capital of the Company into shares;

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The transfer or transmission of shares ;
The payment of subscriptions and the means of enforcing the payment of calls ;
The forfeiture of shares for non-payment of calls ;
The remedies of creditors of the Company against the shareholders ;
The borrowing of money ;
The conversion of the borrowed money into capital ;
The giving of notices ; and
The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 :

Provided that the Companies Clauses Act 1863 for the purposes of such incorporation shall be read and have effect as if the words " and to pay the deposit call or instalment (if any) called for by the directors in respect thereof " had been inserted in section 20 of that Act after the words " any part thereof."

Interpre-
tation.

3. The several words and expressions to which by the Acts in part incorporated herewith meanings are assigned have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction and in this Act " the Company " means the Surrey Commercial Dock Company and " the Act of 1894 " means the Surrey Commercial Dock Act 1894.

Power to
raise addi-
tional capital.

4. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise in addition to their authorised capital any additional capital not exceeding in the whole three hundred thousand pounds by the issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

As to disposal
of shares or
stock.

5. Notwithstanding anything contained in Part II. of the Companies Clauses Act 1863 all or any of the shares or stock representing any portion of the additional capital by this Act

authorised may be disposed of at such times to such persons on such terms and conditions and in such manner as the directors think most advantageous to the Company. A.D. 1904.

6. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. Except as otherwise provided new shares or stock to be subject to same incidents as other shares or stock.

7. The capital in new shares or stock so created shall form part of the capital of the Company and section 40 of the Act of 1894 shall be read and have effect as if the additional capital by this Act authorised formed part of the additional capital authorised to be raised by that Act. New shares or stock to form part of capital of Company.

8. The Company may from time to time (in addition to any sums which they are for the time being authorised to borrow) borrow on mortgage of the undertaking in respect of the additional capital of three hundred thousand pounds which they are by this Act authorised to raise any sum or sums not exceeding in the whole seventy-five thousand pounds and of the last-mentioned sum they may borrow twenty-five thousand pounds in respect of every one hundred thousand pounds of the said capital of three hundred thousand pounds but no part thereof shall be borrowed until shares for such portion of any such sum of one hundred thousand pounds of additional capital in respect of which the borrowing power is exercised as is to be raised by means of shares are issued and accepted and one half of such portion is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that shares for the whole of such portion of capital have been issued and accepted and that one half of such portion of capital has been paid up and that not less than one-fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of such portion of such additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid (before he so certifies) that such shares or stock as the case may be were issued and accepted and to the extent aforesaid Further borrowing powers to Company.

A.D. 1904. — paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Repealing provisions as to appointment of receiver. **9.** Section 43 (For appointment of a receiver) of the Act of 1894 is hereby repealed but without prejudice to any appointment heretofore made or proceedings now pending under the provisions of that section or any of them.

For appointment of a receiver. **10.** The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture stock. **11.** The Company may create and issue debenture stock subject to the provisions of section 44 of the Act of 1894.

Priority of mortgages and debenture stock over other debts. **12.** All money raised or to be raised by the Company on mortgage or debenture stock under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rent-charge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Application of moneys. **13.** All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only for the purposes of this Act the and Act of 1894 and the general purposes of the undertaking of the Company being in every case purposes to which capital is properly applicable.

14. Proceedings for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. A.D. 1904.
Recovery of
demands un-
der 100%.

15. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and the Company may apply their funds or any moneys which they are by this Act authorised to raise accordingly. Costs of Act.

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